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24STCV09872 Ingrid Hawkins

v. Titus Smith

Tuesday, July 28, 2026

[TENTATIVE] ORDER DENYING PLAINTIFF'S

MOTION FOR SUMMARY JUDGMENT OR, IN THE LTERNATIVE, SUMMARY ADJUDICATION (8413)

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO COMPEL RESPONSES TO

DISCOVERY AND FOR MONETARY SANCTIONS (1523)

I. BACKGROUND

This is a

quiet title action filed on April 19, 2024, relating to real property located at 3851 Welland Avenue, Los Angeles, CA 90008, Lot 37 of Tract No. 12012. Plaintiff contends that she and her husband, (non-party) Carl Hawkins, are co-owners of real property pursuant to a grant deed signed by Billie Smith, now deceased. The complaint alleges that Defendant, the power of attorney for Billie Smith, filed a probate matter to establish ownership of the real property, among other remedies. Plaintiff alleges that probate action 18STPB08552 was settled in January of 2021, essentially declaring that Defendant did not have any rights to the real property. Defendant allegedly filed "wild deeds" creating a cloud on title. Plaintiff alleges eight causes of action for quiet title, fraud, and cancellation of instrument, among other contract-related causes of action.

Plaintiff now moves for summary judgment of four

causes of action: (1) quiet title; (3) cancellation of instrument; (4)

declaratory relief; and removal of cloud on title. (The latter is not a separately alleged cause of action, but it would result in cancellation of the alleged "wild" deed.

II. LEGAL STANDARDS

Summary

judgment is proper "if all the papers submitted show that the material facts are undisputed and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., § 437c subd. (c).) A party may move for summary adjudication "as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for [punitive] damages." (Code Civ. Proc., § 437c subd. (f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c. subd.(f)(1).)

The court

applies the three-step analysis to motions for summary judgment or adjudication: (1) identify the issues framed by the pleading, (2) determine whether the moving party established facts which negate the opponents' claim, (3) if the moving party meets its threshold burden of persuasion and the burden shifts, determine whether the opposing party has controverted those facts with admissible evidence. (Torres v. Reardon (1992) 3 Cal.App.4th 831, 836.)

As the moving

party, Plaintiff's burden is to demonstrate that the undisputed facts prove each element of the causes of action entitling Plaintiff to judgment. If that threshold burden is established, the burden shifts to Defendants to show a triable issue of one or more material facts. (Code Civ. Proc., § 437c(p)(1).)

III. DISCUSSION

A claim for

quiet title requires a showing of Plaintiff's basis for title against adverse claims. (Code

Civ. Proc., § 761.020.) A written instrument may be cancelled if there is a reasonable apprehension that if left outstanding, it may cause serious injury to a person against whom it is void or voidable. (Civ. Code, § 3412.) An “instrument” is a “written paper signed by a person or persons transferring the title to, or giving a lien on real property, or giving a right to a debt or duty.” (Gov. Code, § 27279; Bank of America Nat. Trust & Savings Ass’n v. Greenbach (1950) 98 Cal.App.2d 220, 238.) Cancellation is essentially a request for rescission that places the parties where they were before the instrument was made. (Deutsche Bank National Trust Co. v. Pyle (2017) 13 Cal.App.5th 513, 523.)

A claim for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party or with respect to property (among other things). (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410; Code Civ. Proc., § 1060.)

The undisputed facts demonstrate that a Grant Deed recorded on May 6, 2013, granted the real property at issue to Plaintiff Ingrid Hawkins, Carl Hawkins, and Billie Smith as joint tenants. (UF 1-3.) Defendant does not dispute the fact that as power of attorney, he subsequently conveyed Billie Smith’s interest to himself. (UF 4.) Defendant only disputes the legal effect of this transaction in the context of the parties’ settlement agreement in the Probate Action, which Defendant initiated upon Billie Smith’s death on April 27, 2018. (UF 5-6, 9.)

The relevant portions of the agreement required Defendant to dismiss the probate matter with prejudice. Plaintiff was required to pay Defendant \$40,000 in 84 monthly installments in exchange for a full and final settlement of the probate action. (P’s Ex. F.)

As part of the settlement, Plaintiff and Carl Hawkins signed a promissory note pledging the property as security for the full payment of \$40,000. Defendant was required to do the following:

"c. Within 10 (10) days of Titus's receipt of the original promissory note and deed of trust , Titus shall execute and deliver to Ingrid and Carl a Rescission Agreement and Notice of Rescission, Quitclaim deed Pursuant to Rescission, and Preliminary Change of Ownership reports, in the form attached hereto as Exhibit 2 suitable for recording, therein conveying all right, title, and interest he may have in the Property to BILLIE R. SMITH, a widowed woman.

"d. Except for the security interest described in this Agreement, Titus agrees and acknowledges that he shall have no further right, title or interest in the Property. If necessary, Titus agrees to execute any and all documents to clear title to the Property so that it is vested in the names of Ingrid and Carl, subject only to the encumbrances described in this Agreement." (P's Ex. F.)

After signing the agreement, Defendant recorded a "Correcting Quitclaim Deed" ("CQD") pursuant to rescission, which Defendant does not dispute. (UF 13.) The CQD states that Defendant quitclaims his partial interest to Billie R. Smith, a widowed woman.

Plaintiff argues the CQD was inconsistent with the settlement terms and is "wild" and illegal. Therein, Defendant quitclaimed his interest in the real property to Billie R. Smith. The CQD also states that:

"The purpose of this Deed is to correct the Quitclaim Deed dated February 13, 2018, ... transferring title from Titus Smith a married man to Billie R. Smith a widowed woman, to show the names of all the joint tenants, namely Carl and Ingrid Hawkins, married, Billie R. Smith, unmarried, which were the original owners before the Quit Claim Deed dated February 13, 2018." (P's Ex. G.)

The CQD states "Exempt from Tax: Bare legal title is conveyed to clear a potential cloud on title; consideration under \$100." (Id.) Defendant argues Plaintiff must show whether or not Plaintiff complied with her obligations to pay monthly installments. That is not relevant because the \$40,000 is a secured debt. The CQD was not contingent on full payment of the \$40,000.

This issue is that Plaintiff must allege and prove a basis for cancellation. Plaintiff does not explain why the CQD is wild, illegal or

void. It was contemplated by the parties' settlement agreement. Billie died on April 27, 2018, leaving Plaintiff and Carl as the only remaining co-tenants. Upon Billie's death, her interest vests in the surviving co-tenants. (Pearce v. Briggs (2021) 68 Cal.App.5th 466, 475 [The right of survivorship is the distinguishing feature of a joint tenancy. The deceased joint tenant's interest in the property held in joint tenancy vests automatically in the surviving joint tenant by operation of law."].)

Plaintiff alleges that a change in title represents a change in ownership. Therefore, adding a name on title triggers a reassessment and results in an increase in taxes. The only way to reverse the increase is a Court order setting forth that Plaintiff Ingrid Hawkins and her husband Carl Hawkins are the sole title holders. (Complaint, ¶ 14.)

Plaintiff has not shown how Defendant's recording of the CQD as contemplated by the party's' settlement agreement caused her damage in the form of higher property tax; why is Defendant liable for the higher property tax if both parties agreed that the CQD was required as a term of settlement.

IV. CONCLUSION

Based on the foregoing, Plaintiff's motion is DENIED.

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION
TO COMPEL RESPONSES TO DISCOVERY AND FOR MONETARY SANCTIONS (1523)

I. BACKGROUND

Plaintiff served requests for admission on Defendant, to which Defendant did not respond. Plaintiff requests an order deeming the requests admitted in favor of Plaintiff. Plaintiff requests imposition of monetary sanctions.

Defendant argues he has subsequently served verified responses.

II. DISCUSSION

Where a party fails to respond to requests for admission, the court can deem the requests admitted against the non-responding party unless it finds that the non-responding party has subsequently served before the hearing, a proposed response to the requests that substantially complies with statutory requirements. (Code Civ. Proc., § 2033.280 subd. (c).) Imposition of sanctions is mandatory where a party's failure to respond to the requests for admission necessitates the motion. Code Civ. Proc., § 2033.280 subd. (c).

Defendant submits proofs of service of his responses to requests for admission, request for production of documents, and special interrogatories. The reply filed by Plaintiff on June 2, 2026, referencing the reservation number 1523, is a reply to the summary judgment motion.

III.

CONCLUSION

Plaintiff's motion is DENIED as moot by Defendant's subsequent service of responses. While imposition of sanctions is mandatory, neither the motion nor Plaintiff's declaration describes the costs incurred. Requesting party must serve with the motion "a declaration setting forth facts supporting the amount of any monetary sanction sought." (Code Civ. Proc., § 2023.040.)